

JURY PLAN FOR RANDOM JURY SELECTION



UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF OKLAHOMA

Effective Date: 5/16/2025¹

¹ In accordance with this Revised Jury Plan for Random Jury Selection, the Master Jury Wheel will be emptied and refilled by September 30, 2025. Until the Master Jury Wheel is refilled and the new Qualified Jury Wheel is constructed, the Court will continue to use the current Master Jury Wheel and Qualified Jury Wheel previously constructed.

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF OKLAHOMA**

JURY PLAN FOR RANDOM JURY SELECTION

Adopted by the District Court:

January 28, 2025

Approved by the United States Court of Appeals

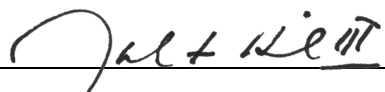
for the Tenth Circuit:

February 25, 2025

Effective Date:

May 16, 2025

FOR THE COURT:



JOHN F. HEIL, III
CHIEF UNITED STATES DISTRICT JUDGE

Jury Selection Plan

ADOPTION OF PLAN

Pursuant to the Jury Selection and Service Act of 1968 (Public Law 90-274) (“the Act”) this Court adopts the following Revised Jury Plan (“the Plan”), subject to approval by the Tenth Circuit Judicial Council and to such rules and regulations as may be adopted from time to time by the Judicial Conference of the United States.

APPLICABILITY OF PLAN

The Plan is applicable to the Northern District of Oklahoma, which consists of the following counties: Craig, Creek, Delaware, Nowata, Mayes, Osage, Ottawa, Pawnee, Rogers, Tulsa, and Washington.

POLICY

It is the policy of this Court that all litigants entitled to trial by jury shall have the right to grand and petit juries selected at random from a fair cross-section of the community that constitutes the Northern District of Oklahoma, and that all citizens shall have the opportunity to be considered for service on grand and petit juries and shall be obligated to serve as jurors when summoned, unless excused for valid reasons by the Court.

MANAGEMENT AND SUPERVISION OF JURY SELECTION PROCESS

The Plan shall be managed by the Court Clerk under the supervision and control of the Chief Judge, or such other judge as may be designated to perform these duties. Whenever used in the Plan, the terms “Clerk” and “Clerk of the Court” shall mean the Court Clerk, any authorized Deputy Court Clerk, or any non-court personnel authorized by the Court to assist the Court Clerk in performance of functions under the Plan.

RANDOM SELECTION FROM THE COMBINED ACTUAL VOTER LIST AND DRIVER LICENSE LIST

To establish a Master Jury Wheel of randomly selected names of prospective grand and petit jurors, the Court Clerk merges the actual voter list for all counties of this district, from the last general election, with the driver license list for all counties of this district.

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The merged sources are referred to as the “combined source list.” Duplicate names from the lists shall be eliminated by using a properly programmed electronic data processing system. Similarly, a properly programmed electronic data system for pure randomized selection, or a combination system employing both manual and electronic machine methods, will be used to select Master Jury Wheel names, select names of persons to be sent questionnaires, select names of persons in the Qualified Jury Wheel to be summoned, and to perform other clerical and record-keeping functions as the Court deems necessary.

Such random selections of names from the combined source list for inclusion in the Master Jury Wheel by data computer personnel must ensure that each county within the district is substantially proportionally represented in the Master Jury Wheel in accordance with 28 U.S.C. § 1863 (b)(3). The selections of names from the combined source list, Master Jury Wheel, and Qualified Jury Wheel must also ensure that the mathematical odds of any single name being picked are substantially equal.

The combined source list represents a fair cross-section of the community in the Northern District of Oklahoma.

MASTER JURY WHEEL

The Court Clerk shall maintain a Master Jury Wheel or a device similar in purpose and function for the district. The names of all persons randomly selected from the combined source list shall be placed in the Master Jury Wheel. Pursuant to 28 U.S.C. § 1863(b)(4), the minimum number of names to be placed initially in the Master Jury Wheel shall be one-half of one percent of the total number of persons on the lists used as a source of names for the district, but in no event shall that number be less than 1,000. The Master Jury Wheel shall be of sufficient number as may be deemed necessary for a four-year period.

The Master Jury Wheel shall be emptied and refilled between March 1 and September 30 of the year following a general presidential election and every four years thereafter. The Chief Judge or the Judge designated by the Chief Judge may order additional names to be placed in the Master Jury Wheel, as herein provided, from time to time as necessary. The Court Clerk is authorized to accept the voluntary assistance of the Secretary of the State Election Board and the Commissioner of Public Safety in accomplishing the requirements of this section, provided such Secretary and Commissioner certify the names furnished were selected in the manner herein prescribed. The Court Clerk is authorized to use qualified, non-Court personnel to create the Master Jury Wheel.

The Court Clerk will provide a clear work statement to any third-party vendor or other non-Court official that is hired to build the Master Jury Wheel. The work statement will address the randomization and proportionality requirements in 28 U.S.C. § 1863 (b)(3).

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The Court Clerk will include in its jury files a signed affidavit certifying that work performed by any third-party vendor or other non-Court official for random selection of jurors was performed according to the Court's procedures.

QUALIFIED JURY WHEEL

After the Master Jury Wheel is refilled, the Court shall construct a Qualified Jury Wheel in the manner provided in the Plan. This shall be done at periodic intervals as required to maintain an adequate number of names in the Qualified Jury Wheel.

To construct a Qualified Jury Wheel, the Clerk will mail a juror qualification questionnaire notice to every person randomly selected pursuant to the Plan and 28 U.S.C. § 1864(a). The notice will direct the prospective juror to complete a juror qualification questionnaire through the Court's internet website within ten days. If a prospective juror does not complete the juror qualification questionnaire online within ten days, a paper copy of the questionnaire shall be mailed with instructions to complete and return the questionnaire to the Clerk by mail within ten days of receipt.

If a substantive omission, ambiguity, or error appears in a completed questionnaire, the Clerk shall return the questionnaire with instructions to the person to make the required additions or corrections and return the questionnaire within ten days.

The names of those persons deemed qualified from the combined source list shall be placed in the Qualified Jury Wheel. Prospective jurors shall be drawn at random from the Qualified Wheel from time to time as to be determined by the Court. The prospective jurors whose names have been drawn shall be summoned to appear for a time certain as may be designated by the Court Clerk.

The Court Clerk shall draw at random from the Qualified Jury Wheel for this district such number of names of persons deemed necessary to be summoned for the petit jury panels and prepare a list of the names drawn. Grand jurors shall be drawn from the Qualified Jury Wheel as ordered by the Court. The Court Clerk, or the Court Clerk's duly designated deputies, shall issue summonses for the required number of jurors to be served in the manner prescribed in 28 U.S.C. § 1866(b). There shall be no jury commission in this District.

A jury list shall be provided to the parties and/or their attorneys on the day of trial at the commencement of voir dire.

When there is an unanticipated shortage of available petit jurors drawn and summoned from the Qualified Jury Wheel, the Court may require the marshal to summon a sufficient number of petit jurors selected at random from available citizens listed on the combined source list in a manner ordered by the Court who are found to be qualified by the Court.

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The names of persons drawn for jury selection who may be excused or not used for any reason shall be placed back in the jury pool. The names of the trial panel at the completion of the trial may also be placed back in the jury pool for subsequent cases. The procedure is to be repeated for each subsequent case tried at each session of Court. Pursuant to 28 U.S.C. § 1866(e), however, no person shall be required to serve or attend court for prospective service as a petit juror for a total of more than thirty days, except when necessary to complete service in a particular case.

DISCLOSURE OF RECORDS

The contents of records or papers used by the Court Clerk in connection with the jury selection process shall not be disclosed, except upon order of the Court as may be necessary in the preparation or presentation of a motion challenging compliance with the selection procedures of the Plan. The parties in a case shall be allowed to inspect, reproduce, and copy such records or papers at all reasonable times during the preparation and pendency of such motion. Any person who discloses the contents of any record or paper shall be subject to penalty, as provided in the Jury Selection and Service Act of 1968 as amended.

All other disclosures of juror information including disclosures to the press or public shall be released only by Court Order upon written request.

If the interests of justice so require, the Court may order the names of jurors remain anonymous.

DETERMINATION OF QUALIFICATIONS FOR JURY SERVICE

Upon the initiative of the Chief Judge or any judge of the Court, or upon recommendation of the Court Clerk, the judge or his or her designee shall determine, solely on the basis of information provided on the juror qualification form and other relevant information, whether a person is unqualified for, exempt from, or to be excused from jury service.

In making such determination, the Chief Judge or any judge of this Court shall deem any person qualified to serve on grand and petit juries in the district unless the person:

- is not a citizen of the United States, is not eighteen years old, or has not resided for a period of one year within the judicial district;
- is unable to read, write, and understand the English language with a degree of proficiency sufficient to complete satisfactorily the juror qualification form;
- is unable to speak the English language sufficiently to participate fully and effectively at trial;

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- is incapable, by reason of mental or physical infirmity, to render satisfactory jury service; or
- has a charge pending against him or her for the commission, or has been convicted in a state or federal court of record, of a crime punishable by imprisonment for more than one year and his or her civil rights have not been restored.

EXEMPT FROM JURY SERVICE

The Court finds that exemption of the following groups of persons or occupational classes is in the public interest and would not be inconsistent with the Act, and accordingly members of such groups employed in such capacity on a full-time basis are exempt from jury service:

- members in active service in the Armed Forces of the United States;
- members of any non-federal government police or fire department;
- public officials of the United States, state, or local government who are elected to public office or directly appointed by one elected to office.

EXCUSED FROM JURY SERVICE ON INDIVIDUAL REQUEST

The Court finds that jury service by members of the following groups of persons may entail undue hardship or extreme inconvenience to the members thereof, and the excuse of such members will not be inconsistent with the Act and shall be granted for the life of the master jury wheel upon individual request:

- persons over seventy (70) years of age;
- persons who have legal custody of a child or children under the age of ten (10) years, and it is essential they remain in the home for child care;
- persons who have served as a grand or petit juror in federal court within the past two years;
- students in actual attendance at a university, college, academy, or other school having a regular schedule of classes;
- volunteer safety personnel (fire fighters, rescue squad, or ambulance crew) for a public agency.

The Court Clerk is authorized to grant temporary excuses to prospective jurors on the grounds of undue hardship or extreme inconvenience for such period as the Court Clerk deems necessary, at the conclusion of which such person shall be summoned again for jury service.

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CHALLENGES TO THE SELECTION PROCEDURE

Any challenge to this jury selection procedure or the Court's compliance with the provisions of this jury selection procedure or compliance with the provisions of the Jury Selection and Service Act of 1968 shall be made within the times and manner provided in 28 U.S.C. § 1867.

**MINUTES OF THE JUDICIAL COUNCIL
OF THE TENTH CIRCUIT**

February 25, 2025

On this date, the Judicial Council approved the Northern District of Oklahoma's revised Jury Selection Plan, submitted January 28, 2025, by Clerk of Court Heidi D. Campbell, with approval from Chief District Judge John F. Heil. The court may choose the effective date of the approved plan. 28 U.S.C. § 1863(c). Further, the court shall send copies of the approved plan to the Administrative Office of the United States Courts and the United States Attorney General, as required by the Jury Selection and Service Act, *id.* § 1863(a), and *Guide to Judiciary Policy*, Vol. 4, Ch. 3, § 320.30.40.

The Judicial Council

By:



Leslee Fathallah
Circuit Executive and Secretary to the
Judicial Council of the Tenth Circuit